

Amrit Sandhu Costar vs State And Anr on 6 September, 2022

Author: Sudhir Kumar Jain

Bench: Sudhir Kumar Jain

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* IN THE HIGH COURT OF DELHI AT NEW DELHI

Reserved on: July 19, 2022

Decided on: September 06, 2022

+ CRL.M.C. 556/2019 & CRL.M.A. 2314/2019

AMRIT SANDHU COSTAR Petitioner

Through: Mr. Sachin Sood and Mr. Ripin Sood, Advocates.

V

STATE & ANOTHER Respondents

Through: Mr. Ashok Kumar Garg, APP for State/R1 along with SI

Deepak Yadav, PS Hauz Khas.

Mr. Vivek Sood, Senior Advocate alongwith

Mr. Sundeep Sehgal, Mr. Mohd. Kamran and Mr.

Akash Godhvani, Advocates for R-2.

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CORAM:

HON'BLE MR. JUSTICE SUDHIR KUMAR JAIN

JUDGMENT

1. The present petition is filed under section 482 Code of Criminal Procedure, 1973 (hereinafter referred to as "the Code") for quashing the criminal complaint titled as Atamjit Singh V Amrit Sandhu Coster & another bearing CC no 6437 of 2017 and the summoning order dated 03.06.2017 (hereinafter referred to as "the impugned order") passed by the court of Ms. Colette Rashmi Kujur, Metropolitan Magistrate-10, South East, Saket (hereinafter referred to as "the trial court").

2. The factual background necessary to mention for disposal of present petition is that the respondent no.2/ complainant (hereinafter referred to as "the respondent no 2") has filed a complaint under section 138 of the Negotiable Instruments Act, 1881 titled as Atamjit Singh V Amrit Sandhu Coster & another bearing CC No.6437 of 2017 on allegations that the petitioner (arrayed as the accused no 1 in complaint) and her sister namely Jasween Sandhu (arrayed as the accused no 2 in complaint and is petitioner in Crl.M.C. bearing no 437/2019) issued a cheque bearing no. 329623 dated 06.03.2017 amounting to Rs 20,00,000.00 (Rupees Twenty Lacs Only) drawn on Syndicate Bank, Branch West Punjabi Bagh, Central Market, New Delhi-110026 (hereinafter referred to as "the cheque in question") towards discharge the their liability as detailed in complaint. The respondent no 2 presented said cheque for encashment on 06.04.2017 at HDFC Bank, Branch G.K.-I but was dishonored due to "Payment Stopped by Drawer" as intimated vide return memo dated 11.04.2017. The petitioner and Jasween Sandhu did not pay cheque amount despite notice dated 10.05.2017. The respondent being aggrieved filed the present complaint.

3. The trial court vide impugned order summoned the petitioner and Jasween Sandhu. The impugned order is reproduced as under:-

03.06.2017 Present: Complainant along with Sh. Sanjay Kothiyal, Adv.

Heard. Record perused.

Cognizance of offence u/s 138 NI Act taken.

PSE has been led by the complainant.

Vide a separate statement of the complainant, PSE has been closed.

Heard on issuance of process.

In view of the submissions made and documents tendered, this Court is satisfied that there is sufficient material on record to proceed against all the accused. Let summons be issued against all the accused vide PF/RG/AD/Courier returnable on 09.08.2017. PF be filed within 02 weeks.

4. The petitioner being aggrieved filed the present petition and challenged the impugned order. The petitioner pleaded that the present petition is filed with an ulterior motive to coerce the petitioner to settle the criminal case initiated by her for the offence of cheating stated to be committed by respondent no 2 vide FIR bearing no 734 of 2015 registered at PS Hauz Khas and proceedings under sections 82 and 83 of the Code have already been initiated against the petitioner. There is no legally enforceable liability due against the petitioner towards the respondent no 2.

4.1 The petitioner at present is residing in USA. The respondent no 2 was introduced with the petitioner by a close family friend namely Harpreet Singh and the respondent no 2 represented himself as sole proprietor of M/s Ace Trading Company and is engaged in the business of development of restaurants and food courts for his clients. The respondent no 2 after winning trust and confidence of the petitioner lured her to invest in the business of restaurant and food court business and the respondent no 2 would be developing food court at Ground Floor of Building No. 8, DLF Cyber City, Phase - II, Sector 24, Gurgaon, Haryana for the petitioner for a total cost of Rs. 40 lacs and the respondent no 2 would be paying Rs. 1 lacs per month till the time the food court is developed at the aforesaid address. The respondent no 2 also promised to hand over fully developed food court to the petitioner within six month and the petitioner would get monthly net profit of 3/4 lacs. The petitioner paid Rs. 40 lacs to the respondent no 2 through cheques and in cash. The respondent No 2 started to pay Rs. 1 lac per month to the petitioner with effect from August, 2011 and continue to pay till December, 2011.

4.2 The petitioner went back to USA and remained there from 13th December, 2011 to 12th January, 2012 and found that food court was being operated by someone else. It was revealed to the petitioner that the food court which was stated to be developed for the petitioner was in fact being developed for another person by the respondent no 2. The respondent no 2 expressed his inability to hand over the food court to the petitioner and also to return the money advanced by the petitioner and to give assured return as agreed. However, the respondent no 2 started to pay Rs. 60,000/- pm with effect from 01.01.2012 to the petitioner. The respondent no 2 at the insistence of the petitioner acknowledged Rs. 40 Lacs paid by her and entered in two Assured Return Agreements. The respondent no 2 was found to be missing and as such the petitioner filed a police complaint.